United States Bankruptcy Court for Northern District of Texas
Tuesday Morning Claims Processing Center
c/o Epiq Corporate Restructuring, LLC
P.O. Box 4420
Beaverton, OR 97076-4420

To submit your form online please go to https://epiqworkflow.com/cases/tue Use your Mail ID for access.

Your Mail ID is as follows: 165276946

RECEIVED
JUN 22 2020

Name of Debtor:
Case Number:

BAR(23) MAILID *** 000165276946 ***
TUE (CREDITOR.DBF,CREDNUM)CREDNUM # 1000028458******
MOUNTAIN VALLEY EXPRESS
1019 BESSEMER AVE.
MANTECA, CA 95337

☐ Check box if the address on the envelope sent to you by the court needs to be updated. Identify your replacement address in Part 1 (Section 3) below.

For Court Use Only

LEGAL SERVICES

Filed: USBC - Northern District of Texas
Tuesday Morning Corporation, et al (B10)
20-31476 (HDH)
TUE
0000000163

Proof of Claim (Official Form 410)

04/19

Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. With the exception of claims under 503(b)(9), do not use this form to make a request for payment of an administrative expense. Make such a request according to 11 U.S.C. § 503. Filers must leave out or redact information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. **Do not send original documents;** they may be destroyed after scanning. If the documents are not available, explain in an attachment.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy (Form 309) **that you received.**

Part 1: Identify the Claim

1. Who is the current creditor?
Name of the current creditor (the person or entity to be paid for this claim): Mountain Valley Express Co. Inc.

Other names the creditor used with the debtor: _____

2. Has this claim been acquired from someone else? ☒ No ☐ Yes. From whom? _____

3. Where should notices and payments to the creditor be sent? Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

Where should notices to the creditor be sent?

Mountain Valley Express
Name
P.O. Box 2569
Number Street
Manteca CA 95336
City State ZIP Code
Country (if International): USA
Contact phone: 800-237-9666
Contact email: Pregelman@mtnvly.com

Where should payments to the creditor be sent? (if different)

Name
Number Street
City State ZIP Code
Country (if International): _____
Contact phone: _____
Contact email: _____

4. Does this claim amend one already filed?

☒ No

☐ Yes. Claim number on court claims register (if known) _____

Filed on _____
MM / DD / YYYY

5. Do you know if anyone else has filed a proof of claim for this claim?

☒ No

☐ Yes. Who made the earlier filing?

_____

Part 2: Give Information About the Claim as of the Date the Case Was Filed

6. Do you have any number you use to identify the debtor?

☐ No

☐ Yes.
Last 4 digits of the debtor's account or any number you use to identify the debtor:
3618

7. How much is the claim?

$ 6,537.50

Does this amount include interest or other charges?

☐ No

☒ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. What is the basis of the claim?

Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card. Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c). Limit disclosing information that is entitled to privacy, such as health care information.

Freight Charges

9. Is all or part of the claim secured?

☑ No

☐ Yes. The claim is secured by a lien on property.

Nature of property:

☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (official Form 410-A) with this *Proof of Claim.*

☐ Motor vehicle

☐ Other. Describe: _____

_____

Basis for perfection: _____

_____

Attach redacted copies of documents, if any, that show evidence of perfection of security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

Value of property: $_____

Amount of the claim that is secured: $_____

Amount of the claim that is unsecured: $_____
(The sum of the secured and unsecured amounts should match the amount in line 7.)

Amount necessary to cure any default as of the date of the petition: $_____

Annual Interest Rate (when case was filed) _____%

☐ Fixed ☐ Variable

10. Is this claim based on a lease?

☑ No

☐ Yes. **Amount necessary to cure any default as of the date of petition.**

$_____

11. Is this claim subject to a right of setoff?

☑ No

☐ Yes. Identify the property:

_____

12. Is all or part of the claim entitled to priority under 11 U.S.C. § 507(a)?

☑ No

☐ Yes. *Check one:*

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

Amount entitled to priority

☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B). $_____

☐ Up to $3,025* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7). $_____

☐ Wages, salaries, or commissions (up to $13,650*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4). $_____

☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8). $_____

☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5). $_____

☐ Other. Specify subsection of 11 U.S.C. § 507 (a)(__) that applies. $_____

* Amounts are subject to adjustment on 4/01/22 and every 3 years after that for cases begun on or after the date of adjustment.

13. Does this claim qualify as an Administrative Expense under 11 U.S.C. § 503(b)(9)?

☑ No

☐ Yes. Indicate the amount of your claim arising from the value of any goods received by the Debtor within 20 days before the date of commencement of the above case, in which the goods have been sold to the Debtor in the ordinary course of such Debtor's business. [Attach supporting documentation.] $_____

Part 3: Sign Below

The person completing this proof of claim must sign and date it. FRBP 9011(b).

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Check the appropriate box:

☐ I am the creditor.

☑ I am the creditor's attorney or authorized agent.

☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.

☐ I am a guarantor, surety, endorser, or other co-debtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on date 06/17/2020 (MM / DD / YYYY) Penny Regelman (Signature)

Print the name of the person who is completing and signing this claim:

Name: Penny (First name) L. (Middle name) Regelman (Last name)

Title: Office Manager

Company: _____

Identify the corporate servicer as the company if the authorized agent is a servicer.

Address: _____
Number Street

_____
City State ZIP Code

Contact Phone 800-237-9669 Email Pregelman@mtnvl4.com

PLEASE REMIT PAYMENT TO:

6/17/20

PAGE# 1

MOUNTAIN VALLEY EXPRESS CO,INC
P.O. BOX 2569
MANTECA, CA 95336-1167

CUST# 1103618
TUESDAY MORNING

THIS STATEMENT INCLUDES INVOICES THAT ARE PAST DUE.
YOUR PROMPT PAYMENT OF THESE ITEMS IS APPRECIATED.
INCLUDE ALL INVOICE #'S AND THE STATEMENT # WITH PAYMENT.
PLEASE DIRECT QUESTIONS TO ACCTS. RECEIVABLE @ (XXX) XXX-XXXX
(209) 823-2168
THANK YOU FOR YOUR LAST PAYMENT POSTED ON 4/15/20

DATE	INVOICE	DESCRIPTION	DAYS	LATE	BALANCE	
2/26/20	259680487 B/L#	TM000000026	112	50.00	1050.00	COL
2/28/20	259680499 B/L#	TM000000295	110	50.00	575.00	COL
3/06/20	259680529 B/L#	416502	103	25.00	275.00	COL
3/11/20	259680542 B/L#	TM000000294	98	50.00	625.00	COL
3/12/20	259680554 B/L#	TM000001037	97	50.00	550.00	COL
3/13/20	259680566 B/L#	NA	96	12.50	137.50	COL
4/03/20	259680578 B/L#	TM000001968	75	25.00	275.00	COL
4/06/20	283268070 B/L#	TM000000518	72	50.00	3050.00	COL

STATEMENT TOTAL $6,537.50

1-15	16-30	31-45	46-60	61-90	OVER 90	TOTAL
				3325.00	3212.50	6537.50

STATEMENT # : 904577

TUESDAY MORNING
6250 LBJ FREEWAY
DALLAS, TX 75240-0000

MOUNTAIN VALLEY EXPRESS
P.O. BOX 2569 • MANTECA, CALIFORNIA 95336

Hasler FIRST-CLASS MAIL
06/17/2020
US POSTAGE $000.50⁰

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JUN 22 2020
LEGAL SERVICES

Tuesday Morning Claims
Processing Center
c/o Epiq Corporate Restructuring LLC
P.O. Box 4420
Beaverton, Or. 97076-4420

97076$0420 B900